

## MEMORANDUM TO THE RECORD

Subj: **USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD**

### I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).
2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

### II. DESCRIPTION OF ITEM OR SERVICE:

1 each service to confirm operational status with verification check and upgrade shop lasertronics 500i laser ablative tooling with Tracer Technology, Surface Color Technology and provide a spare umbilical by the original manufacturer (GLC Lasertronics). The intended use of the upgraded Laser ablative equipment is the removal of paint and surface contaminants from metal surfaces by virtue of laser application. The name of the required source is General Lasertronics Corporation.

### III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select all that apply):

#### A. ☒ **ONLY ONE RESPONSIBLE SOURCE (select all that apply):**

1. ☐ **RESTRICTIVE RIGHTS.** The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

*Explain what rights are restricted, why the restrictive rights make the required item or service available from only one source, and why another company could not satisfy the Government's need.*

2.   X   EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

The original equipment manufacturer is General Lasertronics Corporation (GLC). [REDACTED]

[REDACTED] . Repair of the 500i Laser Ablative tooling is only warranted if repaired by the original manufacturer (GLC). Another manufacturer or service entity would not have the necessary drawings, knowledge and parts needed to repair, upgrade and warrant the Laser equipment such that it is safe to use by qualified Shop [REDACTED] employees.

OR

*Identify the distributor(s)/authorized technical representative(s) for the item or service. Provide evidence of the exclusive licensing agreement as an attachment to this document. NOTE: If there is more than one distributor/authorized technical representative for an OEM part, then Part B, BRAND NAME SOLE SOURCE, is applicable, and Part A, ONLY ONE RESPONSIBLE SOURCE, should be left blank).*

3.   X   OTHER REASONS. The mission impact would be excessive delays for deployment of the Laser Ablative Tooling by Shop [REDACTED] but also one of safety. Another company could not possibly know how to successfully repair GLC manufactured Laser Ablative Tooling and warrant such repairs to be safe for use by qualified Shipyard Employees.

**B.    BRAND NAME.** Item required must be a brand name product, or feature of a product, particular to one manufacturer. *Discuss why you are precluding consideration of a product manufactured by another company. Describe how the particular brand name, product, or feature is essential to the Government's requirements and why a "brand name or equal" purchase description cannot be used (see FAR 11.104). Describe how market research indicates other companies' similar products or products lacking the particular feature do not meet, or cannot be modified to meet, the agency's needs.*

**C.    UNUSUAL AND COMPELLING URGENCY.** The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:

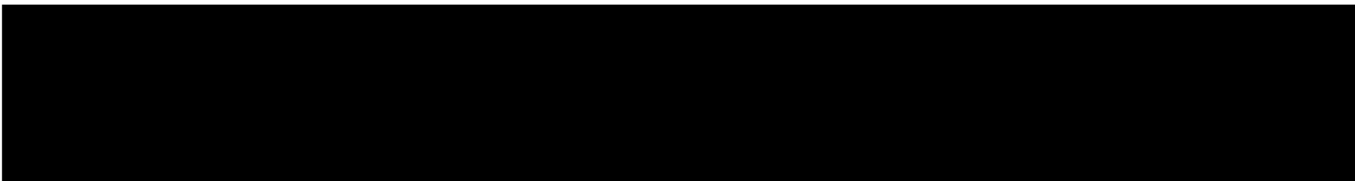
2. Required delivery date/period of performance:

3. Explanation of why delivery/commencement of services by the date mentioned above is required: *Explain the impact to the mission if the date above is not met, any special circumstances or conditions that exist which validate the requirement as “urgent,” estimated production lead time for the item, etc.*

4 . If appropriate, include any additional pertinent information.

#### IV. CERTIFICATIONS/APPROVALS:

**Technical / Requirements Certification:** I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.



**Contracting Officer Certification:** I certify that the facts and representation included in this justification are complete and accurate to the best of my knowledge and belief.

